

21STCV07986 21STCV07986

County: los-angeles

Division: Civil Law and Motion

Department: F43

Hearing date: 2026-07-17

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CCW%2CF43%2C07%2F17%2F2026

Source SHA-256: 5247009af60f37108921850f25cdf31dca530808df855be4b3dab5a33eacd0cf

Case Number: 21STCV07986 Hearing Date: July 17, 2026 Dept: F43

Dept. F43

Hearing Date: 07-17-26

Case # 21STCV07986, Luna v. Caremeridian,
LLC, et al.

Trial Date: 11-02-26

MOTION FOR JUDGMENT
ON THE PLEADINGS

MOVING PARTY: Plaintiff Abel Luna

RESPONDING PARTY: Defendants Caremeridian, LLC and National
Mentor Healthcare dba Sevita

RELIEF REQUESTED

Order granting judgment on the pleadings for
plaintiff as to defendants' first, second, third, fourth, fifth, sixth, eighth,
tenth, and eleventh affirmative defenses for failing to state sufficient facts
to constitute a defense to this action.

RULING: Motion is denied.

SUMMARY OF ACTION

On March 1, 2021, plaintiff Abel Luna (Plaintiff) filed this adult abuse and neglect action against defendants CareMeridian, LLC dba Neurorestorative Oso North and Providence Health System - Southern California dba Providence Holy Cross Medical Center. Plaintiff alleges on February 2, 2019, he sustained catastrophic injuries in a motor vehicle accident which resulted in multiple spinal fractures and paralysis. Defendants CareMeridian and Providence Health failed to provide proper care to him while he was admitted as a patient at Providence's hospital and during a residency at CareMeridian's facility. As a result, Plaintiff developed several pressure wounds. Plaintiff asserts dependent adult abuse - neglect and negligence causes of action. Providence Health has been dismissed.

On August 20, 2021, CareMeridian filed and served and answer. On June 20, 2025, Plaintiff identified National Mentor Healthcare, LLC dba Savita Health as a defendant. National Mentor Healthcare, LLC filed an answer on August 19, 2025.

On June 16, 2026, Plaintiff filed the instant motion for judgment on the pleadings in favor of Plaintiff as to the first, second, third, fourth, fifth, sixth, eighth, tenth, and eleventh affirmative defenses in defendants CareMeridian's and National Mentor's Answers. Defendants CareMeridian and National Mentor (Defendants) filed an opposition on July 6, 2026. On July 10, 2026, Plaintiff filed a reply.

MEET AND CONFER

Before filing a motion for judgment on the pleadings, "the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion for judgment on the pleadings for the purpose of determining if an agreement can be reached that resolves the claims to be raised in the motion for judgment on the pleadings." (Code Civ. Proc., § 439, subd. (a).) The parties must meet and confer "at least 5 days before the date a motion for judgment on the pleadings is filed." (Code Civ. Proc., § 439, subd. (a)(2).)

The motion for judgment on the pleadings must include a declaration stating either:

“(A) The means by which the moving party met and conferred with the party who filed the pleading subject to the motion for judgment on the pleadings, and that the parties did not reach an agreement resolving the claims raised by the motion for judgment on the pleadings. [or] (B) That the party who filed the pleading subject to the motion for judgment on the pleadings failed to respond to the meet and confer request of the moving party or otherwise failed to meet and confer in good faith.” (Code Civ. Proc., § 439, subd. (a)(3).)

The “meet and confer” requirement is met because counsel exchanged emails and spoke telephonically on April 28, 2026. (Declaration of Benjamin Tosh ¶¶ 3-4.)

ANALYSIS

A. Motion for Judgment on the Pleadings

Any party to an action is entitled to judgment on the pleadings if the challenged pleading does not state a cause of action. (Code Civ. Proc., § 438, subds. (b)(1), (c)(2)(B); *Howard Jarvis Taxpayers Assn. v. City of Riverside* (1999) 73 Cal.App.4th 679, 684.)

The grounds for the motion must appear on the face of the challenged pleading or be based on the facts on which the court may or is required to take judicial notice. (Code Civ. Proc. § 438, subd. (d); *Tung v. Chicago Title Co.* (2021) 63 Cal.App.5th 734, 758-759.) If the moving party is a plaintiff, plaintiff must demonstrate that (1) the complaint states facts sufficient to constitute a cause or causes of action against the defendant and (2) the answer does not state facts sufficient to constitute a defense to the complaint. (Code Civ. Proc., § 438, subd. (c)(1)(A).)

“No motion may be made pursuant to this section if a pretrial conference order has been entered pursuant to Section 575, or within 30 days of the date the action is initially set for trial, whichever is later, unless the court otherwise permits.” (Code Civ. Proc., § 438, subd. (e).)

A plaintiff may move for judgment on the pleadings only after the

defendant has filed an answer to the complaint and the time for the plaintiff to demur to the answer has expired.

(Code Civ. Proc., § 438, subd. (f)(1).)

However, the moving party may still move for judgment on the pleadings if the moving party did not demur to the answer on the same grounds as is the basis for the motion for judgment on the pleadings. (Code Civ. Proc., § 438, subd. (g)(2).)

Both Defendants have filed answers and the time to demur to the answers expired on September 20, 2021 (CareMeridian's answer) and on September 18, 2025 (National Mentor's answer).

Trial was originally scheduled for August 29, 2022, and the Final Status Conference does not take place until October 23, 2026. Although Plaintiff's motion is untimely pursuant to Section 438, subdivision (e), Plaintiff has brought his motion as a statutory and common law motion. "Since 1994, motions for judgment on the pleadings have been authorized by statute. Previously, they were allowed by common law. Generally, as such motions were, so they remain." (Gerawan Farming, Inc. v. Lyons (2000) 24 Cal.4th 468, 482, fn. 2, citations omitted.) "The common law ground for a motion for judgment on the pleadings is identical to the statutory ground: 'The complaint does not state facts sufficient to constitute a cause of action.'" (Korchemny v. Piterman (2021) 68 Cal.App.5th 1032, 1055, citations omitted.) Because Plaintiff's notice of motion lists both Section 438 and "common law" as a basis for the motion and contends "failure to state facts sufficient to constitute a defense to this action" as the reasoning for the motion, the court has authority to convert the motion into a "common law" motion and consider the merits despite the untimeliness.

Plaintiff contends judgment should be granted for him on the first, second, third, fourth, fifth, sixth, eighth, tenth, and eleventh affirmative defenses in Defendants' answers because Defendants merely plead a legal conclusion without alleging any supporting facts. In opposition, Defendants ask the court to deny the motion and allow them to file an amended answer because the parties continue to engage in discovery.

After reviewing the moving papers, the court finds that

Plaintiff has failed to comply with both prongs of Section 438, subdivision (c)(1)(A). As both a common law motion and a Section 438 motion, Plaintiff is required to (1) demonstrate that the complaint states

facts sufficient to constitute a cause of action and (2) demonstrate that Defendants' answer does not state facts sufficient to constitute a defense.

Plaintiff has only satisfied the second prong as to each affirmative defense. Without a separate analysis concerning whether the Complaint establishes each cause of action, Plaintiff's motion fails to satisfy the first prong.

Therefore, the court denies Plaintiff's motion for judgment on the pleadings as to the first, second, third, fourth, fifth, sixth, eighth, tenth, and eleventh affirmative defenses in defendants CareMeridian's and National Mentor's answers.

CONCLUSION and ORDER

Motion is denied.

Plaintiff to give notice.